Idaho Generative AI in Education Framework: Data and Student Privacy Passages

Excerpted verbatim from *Generative Artificial Intelligence in Education Framework (Idaho State Department of Education, 2026), including the appendix with the Idaho School Boards Association draft policy and sample letter home*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Numbered lists in the source are shown as bullets. Bracketed text in the draft policy appears exactly as printed in the source.

Letter from the Superintendent (excerpt)

Source: page 1

Just as importantly, we have a responsibility to ensure that AI is introduced in developmentally appropriate ways, to protect student privacy, and to reflect the trust parents place in our public schools.

Guiding Principles (excerpt)

Source: page 5

The goal is not simply to adopt AI, but to ensure it is implemented in ways that support student success, strengthen teaching and learning, protect privacy, and reflect Idaho's values.

Guiding Principles: AI usage will prioritize ethics, legality and safety.

Source: page 6

Idaho will put protecting personal identifiable information (PII) first. All AI tools and resources must comply with protection laws. No PII should ever be uploaded or used within an AI system without understanding the protections that are in place to keep individuals safe. Idaho districts, schools, and charters will be expected to ensure that all resources protect student data through appropriate safeguards and procedures. (Netskope, 2026)

AI as an instructional tool (excerpt)

Source: page 9

Student identifiable data should not be entered into any AI tool that is not secure and fully compliant with FERPA, COPPA, and any other national or state laws regarding student data privacy and use. Keeping student data safe and private is essential.

K-2 Guidance and Instructional Ideas (excerpt)

Source: page 9

- Help students understand what identifiable data vs. non-identifiable data is.

Safe Boundaries and Limitations of AI (excerpt)

Source: page 12

Implementation of AI in the classroom must be done in a safe manner. It is important for educators to first understand how a tool works and how it collects and stores data. Student identifiable data should never be entered into AI tools without a clear understanding of the safeguards the tool provides. This includes student names, specific accommodations, and any other personally identifiable information.

Platform Purchasing (excerpt)

Source: page 15

When choosing a tool for a district, school, or charter, it is important to have a cybersecurity mindset in place. Like any technology tool or platform, when adopting AI platforms, there should always be a vetting process.

Platform Purchasing: Vendor Questions and Data Privacy Agreements

Source: page 16

Key things that should be addressed when talking with a vendor are:

- How is our data being used within the system?
- How is user data collected, analyzed, shared, or used to ensure data isn't being used for training purposes?
- What data is retained, who has access to it, and when is it deleted?
- How are you keeping student and teacher data safe?
- Is your tool compliant with COPPA, FERPA, PPRA, CIPA, IDEA, Title VI, your state student data privacy laws, and any state AI legislation?

After a tool is selected, a district, school or charter should always require a Data Privacy Agreement (DPA) with the vendor. This protects the district, school, or charter through a legally binding contract to ensure that all sensitive data is handled with care and oversight.

Some key components to make sure are a DPA are:

- Data ownership
- Data use limitations
- Types of data covered
- Compliance requirements
- Data security measures
- Data retention and deletion process

Idaho School Boards Association DRAFT Policy: Purpose (excerpt)

Source: page 21

It is also intended to help inform the District community about issues to be aware of regarding generative AI tools, such as data privacy concerns, their potential to provide inaccurate or inappropriate responses, and the fact it is not possible to own or copyright material created using such tools.

Idaho School Boards Association DRAFT Policy: Approved Generative AI Tools

Source: pages 21–22

The Superintendent, or their designee, may create a list of District-approved generative AI tools. Before approving such tools, the [SELECT ONE: Superintendent or their designee OR IT department OR _____] shall review and understand each tool's terms of service and privacy policy and ensure the use of the tool is compatible with District policy and laws related to student privacy, data security, and other applicable requirements. The Superintendent or their designee may grant approval on a case-by-case basis of generative AI tools not yet given general approval. The Superintendent may also require a data protection agreement between the District and any software tool covered by this policy.

When considering purchasing access to a generative AI tool, the District shall consider what purpose they want the tool to serve and how training and support will be provided to those who use the tool. The District shall require a data privacy agreement (DPA) with any vendor their contract with to access a generative AI tool to protect sensitive student, staff, and District data.

Matters that should be considered when selecting a provider of an AI service include:

- How the District's data will be used, consistent with IC 33-133;
- How any user data collected will be analyzed, shared, or used and whether the provider can ensure the data is not used for AI model training;
- What kinds of data the provider keeps, how long it is kept, and who will have access to it;
- Measures they take to protect student and staff data; and
- Whether the tool complies with the requirements of the Children's Online Privacy Protection Act (COPPA), the Family Educational Rights and Privacy Act (REPA), the Protection of Pupil Rights Amendment (PPRA), the Children's Internet Protection Act (CIPA), the Individuals with Disabilities Education Act (IDEA), Title VI, Idaho student data privacy laws, and any Idaho AI legislation.

Idaho School Boards Association DRAFT Policy: Use by Staff (excerpt)

Source: page 22

For generative AI tools that require an account, staff shall maintain separate accounts for work and personal uses and shall inform their supervisor of any work-related accounts created. Personal generative AI accounts shall not be used on District equipment or a District-provided internet connection.

Staff shall not use any of the following in prompts for an AI tool or otherwise upload the following to an AI tool unless the Superintendent or their designee provides specific permission to do so:

- Personally identifiable information;
- Sensitive or confidential student or personnel records; or
- Any copyrighted material.

Idaho School Boards Association DRAFT Policy: Staff Professional Development (excerpt)

Source: page 23

The District may provide professional development to educators, administrators, and support staff on generative AI, including on such topics as ethical use, the abilities and limitations of such tools, how to evaluate their output, monitoring student use, data and confidentiality issues, and possible in-class uses.

Idaho School Boards Association DRAFT Policy: Use by Students at the Direction of Staff (excerpt)

Source: page 23

The Superintendent shall delegate staff to provide students with instruction on generative AI tools, including on:

- The importance of not sharing personal information when using such tools;
- Confidentiality and safety considerations; and

[SELECT ONE: Parent consent shall be required before students are directed to use generative AI tools in any school activity or assignment. OR The District shall obtain parent consent for student use of generative AI tools whenever such permission is required by the tool's terms of service.] Students should not be penalized for refusal to use such tools. For any such activity or assignment, students will be directed to use only tools that have been approved by the District.

Idaho School Boards Association DRAFT Policy: Student-Chosen Use of AI Tools (excerpt)

Source: page 24

Staff will not knowingly allow students to use AI tools in ways that violate their terms of service, such as use without parent permission or use of an account shared between many people when prohibited. Teachers shall take reasonable steps to prevent use of generative AI tools in ways that undermine learning and assessment or create safety and/or confidentiality concerns.

Sample Letter Home (TeachAI, 2025) (excerpt)

Source: page 26

Privacy & Security: AI use will align with regulations protecting student data privacy, safety, and accessibility.

We remind parents and guardians that many AI tools may have age restrictions, and when using AI tools at home, it is important to be aware of this. All tools used in school will have appropriate

security measures in place to keep students and their data safe.